

Anti-Discrimination & Equal Employment Opportunity

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1.1 Introduction

ApMoSys Technologies recognizes the importance of cultivating a workplace that values diversity, promotes inclusivity, and upholds the principles of fairness and equal opportunity for all employees. We believe that a diverse and inclusive workforce not only enhances the overall work environment but also contributes to the success and innovation of our organization.

This Anti-Discrimination & Equal Employment Opportunity policy reflects our commitment to creating and maintaining a workplace free from discrimination, harassment, and bias. We firmly believe that every individual, regardless of the background, deserves to be treated with dignity and respect. This policy is a cornerstone of our organizational culture, demonstrating our dedication to fostering an environment where employees can thrive without fear of discrimination or unequal treatment.

1.2 Purpose

The purpose of this policy is to establish clear guidelines and principles that govern our approach to Anti-Discrimination & Equal Employment Opportunity. By setting forth these standards, we aim to:

- 1.2.1 Promote Inclusivity:** We are committed to fostering an inclusive workplace that embraces diversity in all its forms, including but not limited to race, color, religion, sex, sexual orientation, gender identity, national origin, age, disability, or any other protected status under applicable laws
- 1.2.2 Prevent Discrimination:** We strive to eliminate all forms of discrimination throughout the employment lifecycle, from recruitment and hiring to training, promotion, compensation, benefits, and termination
- 1.2.3 Encourage a Respectful Environment:** Our goal is to create a work environment where all employees treat each other with respect, recognizing and valuing the unique contributions each individual brings to the organization
- 1.2.4 Ensure Compliance:** This policy is designed to ensure compliance with local, state, and central laws governing equal employment opportunity and anti-discrimination

1.3 Scope

This policy applies to all employees of ApMoSys, including full-time, part-time, temporary categories, contract employees and full time and part time consultants as well as applicants for employment. It covers all aspects of employment, including but not limited to recruitment, hiring, training, promotion, compensation, benefits, and termination.

ApMoSys is committed to applying this policy consistently across all levels of the organization, from front-line staff to senior management. Additionally, this policy extends to interactions with clients, vendors, and other external parties, emphasizing our dedication to promoting equal opportunities in all aspects of our business.

1.4 Objective

- 1.4.1 Eliminate Discrimination:** The primary objective of this policy is to eliminate all forms of discrimination within our organization. We are dedicated to providing a work environment

where individuals are judged based on their skills, abilities, and contributions rather than their personal characteristics

- 1.4.2 Promote Equal Opportunity:** ApMoSys provides equal employment opportunities to all employees and applicants, ensuring that decisions related to recruitment, promotion, training, and other employment practices are made without regard to protected characteristics
- 1.4.3 Create a Culture of Inclusion:** This policy seeks to create and sustain a culture of inclusion, where diverse perspectives are valued, and all employees feel welcome and respected
- 1.4.4 Compliance with Laws:** ApMoSys is committed to ensure the compliance with all applicable laws and regulations related to equal employment opportunity and anti-discrimination
- 1.4.5 Continuous Improvement:** ApMoSys will regularly review and update this policy to reflect changes in laws, industry best practices, and the evolving needs of the organization. This includes ongoing efforts to enhance training programs and awareness initiatives related to equal employment opportunity

1.5 Definitions

1.5.1 Discrimination

Discrimination refers to the unjust or prejudicial treatment of individuals or groups based on certain characteristics or attributes. These characteristics include, but are not limited to, race, color, religion, sex, sexual orientation, gender identity or expression, national origin, age, disability, genetic information, medical condition, or any other protected status under applicable laws.

1.5.2 Harassment

Harassment refers to any unwelcome or offensive behavior, whether verbal, physical, or visual, that creates a hostile, intimidating, or offensive work environment. Harassment may be based on protected characteristics such as race, color, religion, sex, sexual orientation, gender identity, national origin, age, disability, genetic information, medical condition, or any other characteristic protected by applicable laws.

1.5.3 Retaliation

Retaliation occurs when an employer takes adverse employment actions against an individual in response to the individual's engagement in protected activity. Protected activity includes, but is not limited to, activities such as:

- 1.5.2.1 Filing a Complaint:** An employee filing a complaint or grievance alleging discrimination, harassment, or other violations of the company's policies or applicable laws
- 1.5.2.2 Participating in an Investigation:** An employee participating in an investigation of alleged discrimination or harassment, whether as a witness, complainant, or otherwise
- 1.5.2.3 Opposing Discriminatory Practices:** An employee expressing opposition to discriminatory practices, policies, or behavior, either internally within the company or externally, such as filing a complaint with an external agency
- 1.5.2.4 Requesting Accommodations:** An employee requesting reasonable accommodations for a disability or a religious practice
- 1.5.2.5 Exercising Rights under EEO Laws:** Exercising any rights protected under anti-discrimination laws, such as filing a charge of discrimination with a government agency

1.5.4 Forms of Retaliation: Retaliation can take various forms, and it is not limited to direct actions. Examples of activities that may be considered retaliation include but not limited to:

- 1.5.4.1 Termination or Demotion:** Taking adverse employment actions such as termination, demotion, or reduction in pay in response to an employee engaging in protected activity
- 1.5.4.2 Negative Performance Reviews:** Providing unjustifiably negative performance reviews or feedback to an employee who has engaged in protected activity
- 1.5.4.3 Isolation or Exclusion:** Subjecting the employee to isolation, exclusion, or unwarranted exclusion from team activities or meetings
- 1.5.4.4 Unwarranted Disciplinary Actions:** Imposing unwarranted disciplinary actions or sanctions against the employee
- 1.5.4.5 Change in Job Responsibilities:** Making significant changes to the employee's job responsibilities, assignments, or working conditions in a manner that is detrimental to the employee
- 1.5.4.6 Intimidation or Threats:** Using intimidation, threats, or coercion against the employee to discourage engagement in protected activity
- 1.5.4.7 Spreading False Information:** Spreading false information about the employee to damage their reputation or hinder their career advancement

1.6 Prohibited Conduct

1.6.1 Discrimination: Discrimination refers to treating employees or job applicants unfavorably based on their protected status. Protected statuses include, but are not limited to:

- 1.6.1.1.** Race, caste, color, and ethnicity
- 1.6.1.2.** Religion or beliefs
- 1.6.1.3.** Sex, Gender, and Sexual Orientation
- 1.6.1.4.** National Origin
- 1.6.1.5.** Social and/or economic status
- 1.6.1.6.** Age
- 1.6.1.7.** Disability
- 1.6.1.8.** Nationality or origin of states
- 1.6.1.9.** Language and / or ascent
- 1.6.1.10.** Marital status and / or Parental Background
- 1.6.1.11.** Appearance
- 1.6.1.12.** Political and / or social beliefs
- 1.6.1.13.** Education Levels
- 1.6.1.14.** Places of residence – Rural, urban etc.

1.6.2 Harassment: Harassment constitutes unwelcome conduct, whether verbal, physical, or visual, that creates an intimidating, hostile, or offensive working environment. Harassment can take various forms, including:

- 1.6.2.1.** Sexual Harassment – Unwelcome sexual advances, sexual favors, unwanted conduct of sexual nature
- 1.6.2.2.** Verbal Harassment – Use of demeaning words, insults, intimidation
- 1.6.2.3.** Physical Harassment – Physical attacks, threats, aggressive gestures to cause physical harm

- 1.6.2.4. Psychological or emotional harassment – Actions to mentally or emotionally destabilize, criticism, exclusion.
- 1.6.2.5. Racial Harassment – Comments on race, ethnicity, national origin
- 1.6.2.6. Religious Harassment – Targeting due to religious beliefs, practices, pressurizing someone to convert, exclusion based on faith
- 1.6.2.7. Disability Harassment – Discrimination on physical and / or mental disability
- 1.6.2.8. Age Harassment – Targeting old or very young individuals
- 1.6.2.9. Gender identity or sexual orientation harassment – Misgendering, derogatory comments
- 1.6.2.10. Cyber Harassment (Online Bullying) – Harassing over digital platform, cyberstalking

1.6.3 Other Forms of Discrimination and Harassment:

- 1.6.3.1. **Pregnancy Discrimination:** Discrimination based on pregnancy, childbirth, or related medical conditions is prohibited
- 1.6.3.2. **Genetic Information:** Discrimination based on genetic information, including family medical history, is prohibited

1.7 Retaliation

Retaliation occurs when an employee adopts to any legal, protected activity such as reporting discrimination, harassment, and unethical behavior – and faces negative consequences. The protected activity includes:

- 1.7.1 **Filing a Complaint:** Employees who file a complaint or report an incident of discrimination or harassment are protected from retaliation
- 1.7.2 **Participating in an Investigation:** Employees who participate in an investigation of discrimination or harassment, whether as a witness or a complainant, are protected from retaliation
- 1.7.3 **Opposing Discriminatory Practices:** Employees who oppose discriminatory practices or policies, whether internally or externally, are protected from retaliation

1.8 Failure to Provide Reasonable Accommodations

Employers are obligated to provide reasonable accommodations to employees with disabilities to ensure they can perform the essential functions of their jobs. Failure to provide reasonable accommodations may constitute discrimination. However, the decision of HR and Management will be final and binding for all such cases.

1.9 Implicit Bias and Micro-aggressions

Implicit bias and micro-aggressions, even if unintentional, can contribute to a discriminatory and hostile work environment. Employees are encouraged to be aware of their biases and avoid engaging in micro-aggressive behaviors.

1.10 Systemic Discrimination

This includes policies, practices, or procedures that, while neutral on the surface, have a disproportionately adverse impact on individuals based on their protected status. Employers should actively assess and address systemic discrimination within the organization.

1.11 Equal Employment Opportunity

1.11.1 Definition: Equal Employment Opportunity (EEO) is the principle that every individual, regardless of their race, color, religion, sex, sexual orientation, gender identity, national origin, age, disability, genetic information, medical condition, or any other protected status under applicable laws, has the right to fair and equal treatment in all aspects of employment. EEO ensures that employment decisions, including recruitment, hiring, promotion, compensation, benefits, and termination, are made without bias or discrimination.

LGBTQ Equal Employment Opportunity extends the principles of EEO to ensure that individuals are not discriminated against based on their sexual orientation, gender identity, or any other LGBTQ-related characteristic. It emphasizes fair and equal treatment for all employees, regardless of their sexual orientation or gender identity.

Equal Employment Opportunity for medical and mental conditions ensures that individuals with disabilities, chronic illnesses, or mental health disorders are provided with the same employment opportunities and are not subject to discrimination in any aspect of employment. This includes reasonable accommodations to ensure equal access and participation in the workplace. However, the decision of HR and Management will be final and binding for all such cases.

1.11.2 The core principles of EEO include:

- 1.11.1.1 Non-Discrimination:** EEO prohibits discrimination against employees or job applicants based on their protected characteristics. Discrimination can take various forms, including but not limited to hiring decisions, promotions, job assignments, compensation, and terminations
- 1.11.1.2 Fair and Unbiased Practices:** EEO emphasizes fair and unbiased employment practices that treat all individuals fairly and without prejudice. This includes ensuring that employment decisions are based on merit, qualifications, and job-related criteria
- 1.11.1.3 Inclusive Recruitment and Hiring:** EEO promotes inclusive recruitment and hiring practices that attract a diverse pool of qualified candidates. Employers strive to eliminate barriers that may deter individuals from underrepresented groups from applying or advancing in the hiring process
- 1.11.1.4 Promotion of Diversity and Inclusion:** EEO recognizes the value of diversity and inclusion in the workplace. It encourages organizations to actively promote a diverse workforce by embracing individuals with different backgrounds, perspectives, and experiences
- 1.11.1.5 Accommodations for Disabilities:** EEO requires employers to provide reasonable accommodations to employees with disabilities to ensure they can perform the essential functions of their jobs. This may include modifications to the work environment, job duties, or work schedules. However, the decision of HR and Management will be final and binding for all such cases
- 1.11.1.6 Training and Awareness:** EEO involves providing training and awareness programs to employees to ensure they understand their rights and responsibilities under EEO policies. This includes training on preventing discrimination, harassment, and retaliation

1.11.1.7 Affirmative Action: In some cases, EEO may involve affirmative action measures to address historical imbalances and underrepresentation of certain groups. Affirmative action aims to ensure that all individuals have equal opportunities for employment and advancement

1.11.1.8 Compliance with Laws: EEO requires organizations to comply with applicable and governing laws that prohibit discrimination in employment

1.11.1.9 Harassment Prevention: EEO policies include measures to prevent and address workplace harassment. Harassment based on protected characteristics is considered a violation of EEO principles and should be promptly addressed

1.11.3 Reporting Procedures

Employees who believe they have experienced or witnessed discrimination or harassment are encouraged to report the incident promptly to the members of Ethics Committee. Reports should be made to the employee's reporting manager, human resources, or through the designated reporting mechanism provided by ApMoSys.

1.11.4 Investigation Process

ApMoSys' Ethics Committee shall promptly and thoroughly investigate all reports of discrimination or harassment. Investigations will be conducted impartially, respecting the confidentiality of the parties involved to the extent permitted by law. The results of the investigation will be communicated to the involved parties as appropriate.

1.11.5 Corrective Action

If discrimination or harassment is substantiated, ApMoSys shall take appropriate corrective action, up to and including termination of employment. Corrective action may also include disciplinary measures for individuals who engage in retaliation.

1.11.6 Prevention and Training

ApMoSys is committed to preventing discrimination and harassment through training programs, awareness campaigns, and ongoing education. All employees shall receive training on this policy, and managers and HODs shall receive additional training on their responsibilities for preventing and addressing discrimination and harassment.

1.11.7 Accommodations for Disabilities

ApMoSys is dedicated to providing reasonable accommodations to employees with disabilities to ensure they can perform the essential functions of their jobs. Employees with disabilities are encouraged to contact human resources to discuss necessary accommodations. However, the decision of HR and Management will be final and binding for all such cases.

1.11.8 Diversity and Inclusion

ApMoSys values diversity and inclusion and recognizes the benefits that diverse perspectives bring to the workplace. The company will actively promote diversity in recruitment, hiring, and career development.

1.12 Recruitment and Hiring

In the recruitment and hiring process, ApMoSys is committed to:

- 1.12.1.** Ensuring that job postings are inclusive and free from language that may deter qualified candidates based on their protected status
- 1.12.2.** Conducting a fair and unbiased assessment of candidates' qualifications, skills, and experience
- 1.12.3.** Implementing diverse and inclusive hiring practices to attract a broad range of candidates

1.13 Training and Development

ApMoSys is committed to providing training and development opportunities for all employees. Training programs are designed to enhance requisite knowledge about protected status and the provisions thereof, fostering a culture of continuous learning and growth.

1.14 Affirmative Action

ApMoSys shall take affirmative action measures to promote diversity and equal opportunity. These measures are designed to address historical imbalances and ensure that all individuals have an equal chance for employment and advancement.

1.15 Compensation and Benefits

Compensation and benefits are administered without discrimination, ensuring that all employees receive fair and equitable pay and access to benefits. Pay decisions are based on factors such as job responsibilities, performance, and market conditions.

1.16 Compliance with Laws

ApMoSys is committed to complying with all applicable and governing laws regarding equal employment opportunity. The organization shall regularly review and update policies and practices to ensure ongoing compliance.

1.17 Employee Responsibilities

All employees are expected to uphold and contribute to the principles of equal employment opportunity. This includes treating colleagues and applicants with respect, refraining from discriminatory behavior, and actively participating in creating an inclusive workplace.

1.18 Conclusion

ApMoSys is committed to fostering an inclusive and diverse workplace where everyone is treated with dignity and respect. By adhering to this Anti-Discrimination & Equal Employment Opportunity policy, we strive to create a work environment that promotes fairness, equality, and the full realization of each employee's potential.

Authorized Signatory

Version 6



Head – HR